LAND OPTION PURCHASE AGREEMENT

GREEN BANDIT SOLAR
Nowata County, State of Oklahoma

THIS LAND OPTION PURCHASE AGREEMENT (the "**Agreement**") is made, dated and effective as of 19th day of January, 2024 (the "**Effective Date**") by and between **Invenergy Solar Project Development LLC**, a Delaware limited liability company located at One South Wacker Drive, Suite 1800, Chicago, Illinois 60606 ("**Purchaser**") and Brandon Harold Kuehn, aka Brandon H. Kuehn, herein joined pro forma by his wife, Amber Jolea Kuehn, having an address at 18661 EW 3 RD, S Coffeyville, OK 74072 ("**Seller**").

IN CONSIDERATION of the sum of Twenty Thousand AND 00/100 DOLLARS ($20,000.00 (the "**Option Fee**"), Seller grants to Purchaser for the period (the "**Option Period**") beginning on the Effective Date and ending on the last day of the 36th month following the Effective Date (the "**Expiration Date**"), the exclusive right and option of purchasing any or all of that certain real property located in Nowata County, (the "**County**"), State of Oklahoma consisting of at least two (2) acres, but not more than five (5) acres, as more particularly described in Exhibit A attached hereto and incorporated herein (the "**Property**") for the purposes set forth herein. Purchaser shall pay to Seller the initial Option Fee set forth above within sixty (60) days after the Effective Date.

Purchaser's option (the "**Option**") is subject to all of the terms, covenants and conditions set forth in this Agreement as follows:

1. **Memorandum of Option:** Seller and Purchaser agree to execute a Memorandum of Land Agreement in the form attached as Exhibit B hereto (the "**Memorandum**"). Purchaser may record the Memorandum at Purchaser's expense.

2. **Exercise Date:** If the Purchaser elects to exercise the Option, it must deliver to Seller its written notice of exercise in substantially the same form as set forth in Exhibit C. The notice of exercise will be delivered in accordance with Section 12.2. The "**Exercise Date**" shall be the date when the notice of exercise is deemed duly given as set forth in Section 12.2.

3. **Option Period Extension:**

3.1. Purchaser may at its sole discretion extend the Option Period as follows:

(a) At any time prior to the Expiration Date, Purchaser may extend the Option Period by an additional twenty-four (24) month period by paying an "Additional Option Fee" of Twenty Thousand AND 00/100 DOLLARS ($20,000.00). Purchaser shall remit the Additional Option Fee directly to Seller. Upon remittance of the Additional Option Fee to Seller, the Expiration Date and the Option Period shall be deemed extended to the date being sixty (60) months from the Effective Date (the "Second Period Option Expiration Date"); and,

(b) At any time prior to the Second Period Option Expiration Date, Purchaser may extend the Option Period by an additional twenty-four (24) month period by paying an "Additional Option Fee" of Fifteen Thousand AND 00/100 DOLLARS ($15,000.00). Purchaser shall remit the Additional Option Fee directly to Seller. Upon remittance of the Additional Option Fee to Seller, the Expiration Date and the Option Period shall be deemed extended to the date being eighty-four (84) months from the Effective Date (the "Third Period

Option Expiration Date"); and,

(c) For the avoidance of doubt, Purchaser may at its sole discretion pay one or more of the aforementioned fees in advance, and upon such payment the Option Period shall be extended as set forth in Section 3.1 above.

3.2. The Option Fee and the Additional Option Fee are collectively referred to herein as the **"Option Fees"**.

3.3. The Option Fees shall not be refundable, except as explicitly set forth herein. The Option Fees shall be applied as earnest money towards the Purchase Price.

4. Representations and Warranties of Seller:

4.1. Seller represents and warrants to Purchaser that:

(a) The execution, delivery and performance of this Agreement by Seller will not result in any breach of or under any instrument, agreement, contract or other document to which Seller is a party or by which its Property is bound. No third-party consents are necessary for Seller to sell and convey the Property.

(b) Seller is the sole fee owner of the Property. There are no encumbrances against the Property other than financing which will be paid off with the proceeds that Seller receives from Purchaser at the Closing, and such other encumbrances as set forth as Exhibit D to this Agreement.

(c) There is legal access to the Property from dedicated public roads sufficient for normal development, construction, use and operation of the Property as an energy generation or storage facility (**"Purchaser's Intended Use"**), and vehicular and pedestrian ingress to and egress from the Property.

(d) Seller knows of no facts not disclosed to Purchaser in writing which would prevent Purchaser from developing the Property for Purchaser's Intended Use.

(e) Seller shall not, without the prior written consent of Purchaser, enter into or consent to any lease, easement, covenant, purchase agreement, option, or other obligation affecting the Property or alteration to the Property.

(f) The Property is in compliance with all applicable federal, state and local environmental laws, ordinances, rules and regulations, relating to the handling, storage and disposal of hazardous and toxic wastes and substances, petroleum products and other regulated substances. The use of the Property is now and shall continue to be in compliance with all such environmental laws, ordinances, rules and regulations, including but not limited to the maintenance of all required permits and approvals. Seller has not used or stored hazardous wastes or substances, petroleum products and other regulated substances on the Property nor has Seller discharged or released any such substances upon the Property, including, but not limited to, underground injection of such substances, in violation of any federal, state or local environmental law, ordinance, rule or regulation. To the best of Seller's knowledge, no other party has engaged in any such use, storage, discharge or release. Seller hereby agrees to defend, indemnify and hold Purchaser harmless from any loss or damage incurred by or any claims against Purchaser arising from or related to Seller's, or its employees', contractors', or

other agents' or representatives' breach of this Section 4.1(f), and notwithstanding Section 4.2, this indemnification shall survive Closing indefinitely.

(g) Except as disclosed to Purchaser in writing, Seller does not have knowledge of any condemnation, environmental, zoning or other land-use regulation proceedings, either instituted or planned to be instituted, which would affect the use and operation of the Property or the value of the Property, nor has Seller received notice of any special assessment proceedings affecting the Property.

(h) There is no litigation pending or threatened, to which Seller or any of its affiliates is a party that, if adversely determined, would have a material adverse effect on Seller's ability to perform its obligations under this Agreement.

(i) As may be reasonably requested by Purchaser, Seller (on behalf of itself, its successors, assigns and affiliates) agrees that it will fully cooperate with Purchaser and assist Purchaser in connection with any discussions, negotiations, approvals, applications or other interactions required with or by any governmental or regulatory authorities, including, without limitation, any efforts to rezone the Property, if required, or to obtain required permits and approvals for the Purchaser's Intended Use. Without limiting the foregoing, such cooperation and assistance may include (but not be limited to) providing written documentation, consents and/or approvals to such governmental or regulatory authorities, attending meetings (when practicable and requested by Purchaser) with such governmental or regulatory authorities, communicating with such governmental or regulatory authorities (as requested by Purchaser) and such other assistance as Purchaser may reasonably request from time to time.

4.2. The representations and warranties set forth in this section are continuing and will be true and correct as of the Date of Closing with the same force and effect as if made at that time. All the representations and warranties will survive the Date of Closing for a period of one (1) year and will not be merged in the delivery and execution of the deed or other instruments of conveyance called for in this Agreement.

5. Representations and Warranties of Purchaser:

5.1. Purchaser represents and warrants to Seller that:

(a) Purchaser is duly organized and validly existing as a limited liability company under the laws of the state of its organization.

(b) Purchaser has the full power, authority and legal right under all applicable laws and its organizational documents to enter into this Agreement with Seller. The person who has executed this Agreement on behalf of Purchaser has the appropriate authority to bind Purchaser to the terms of this Agreement.

(c) The execution, delivery and performance of this Agreement by Purchaser will not result in any breach of or under any instrument, agreement, contract, or other document to which Purchaser is a party or by which it or its properties are bound.

5.2. The representations and warranties set forth in this section are continuing and will be true and correct as of the Date of Closing with the same force and effect as if made at that time. All the representations and warranties will survive the Date of Closing for a period of one (1) year and will not be merged in the delivery and execution of the deed or other instruments of conveyance called for in this Agreement.

6. **Option Period:** During the Option Period:

6.1 The Purchaser, may obtain: (i) a survey of the Property prepared by a surveyor duly licensed in the State in which the Property is located (the "**Survey**"); and, (ii) an ALTA Form B title commitment (the "**Commitment**") for an owner's title insurance policy issued by a title insurance company (the "**Title Company**"). If the Commitment or Survey contain exceptions that that are unacceptable to Purchaser, then Purchaser shall provide a list of the objections in reasonable detail to Seller and Seller shall use commercially reasonable efforts to cause the objectionable requirements or title exceptions to be eliminated or cured within a thirty (30) day period and covenant, as a condition to close, to cure all other objections by Closing which cannot be eliminated or cured within such thirty (30) day period. Any title exceptions or survey matters not objected to by Purchaser shall be deemed "**Permitted Exceptions**". If Seller does not eliminate or cure the objections within such thirty (30) day period or otherwise elects not to take any action with respect to the objections, then Purchaser may thereafter terminate this Agreement by giving written notice to Seller and, in such event, Purchaser shall receive a refund of the Additional Option Fees paid to Seller prior to such termination as its sole and exclusive damages and remedy, or in the alternative, if Purchaser thereafter extends the Option Period in accordance with the provisions of Section 3 of this Agreement or elects to proceed with the Closing if the Option has been exercised, then Purchaser shall be deemed to have elected to take title to the Property subject to the objections specified in the Commitment and the objections shall be deemed to be part of any Permitted Exceptions hereunder.

6.2 If, prior to the exercise of the Option, there is any form of governmental restriction that would delay development of the Property by Purchaser for Purchaser's Intended Use or evidence of environmental contamination of the Property, Purchaser may terminate this Agreement by giving written notice to Seller and, in such event, Purchaser shall receive a refund of the Additional Option Fees paid to Seller prior to such termination.

7. **Studies and Investigations:**

7.1. Within twenty (20) days after receipt of a written request from Purchaser, Seller shall deliver to Purchaser the following documents that are in Seller's possession or control:

(a) copies of area surveys, environmental assessment reports, engineering and environmental impact studies, and all other studies and reports relating to the Property that are in Seller's possession or control;

(b) copies of all notices from governmental entities affecting the Property, including copies of the last two (2) years Property assessment and tax bills;

(c) copies of all documents creating third party rights in the Property, including those recorded against the Property that will be Permitted Exceptions.

7.2. Purchaser and any person or persons selected by Purchaser may, upon notice to Seller, enter onto the Property for the purpose of conducting any studies and investigations of the Property that Purchaser deems appropriate. The studies and investigations, and any work on the Property related thereto, shall be conducted and completed in a good and workmanlike manner and may include without limitation, physically inspecting the Property (including drilling, auguring, digging or other intrusive testing of surface water, groundwater, soil, rock or other environmental media or surface and subsurface geologic features) and reviewing Seller's records concerning the Property, which records shall be made reasonably available to Purchaser. Purchaser will promptly pay the charges for any studies and investigations and agrees to defend, indemnify, and hold Seller harmless from any loss or damage incurred by or any claims against Seller arising from or related to Purchaser's, or its employees', contractors', or other agents' or representatives' entry to the Property for the foregoing

purposes or otherwise exercising Purchaser's rights under this Section 7. If any such studies or investigations, or any work related thereto, shall cause damage to the Property, Purchaser, at its sole cost and expense, shall repair any damage caused by the inspections and/or test performed hereunder.

7.3. The Seller hereby consents to any federal, state, municipal, governmental, or quasi-governmental authority or body releasing information relating to the Property that the Purchaser may request, acting reasonably, and shall execute a written authorization and/or direction to that effect, if required by any such governmental authority.

8. Purchase Terms:

8.1. **Purchase Price.** The purchase price for the Property shall be TWENTY THOUSAND and No/100ths DOLLARS ($20,000.00) per Net Acre of the Property purchased (the "**Purchase Price**"). For purposes of this Agreement "Net Acre" or "Net Acreage" means the gross area of the portion of the Property being referred to, including all internal easements and rights-of-way but excluding any and all perimeter easements and dedicated rights-of-way. Net Acreage shall be determined by a survey prepared by a surveyor licensed in the state in which the Property lies. The Purchase Price shall be payable as follows:

(a) The total Option Fees paid to Seller shall be applied as earnest money under this Agreement applicable to the Purchase Price.

(b) The remainder of the Purchase Price shall be paid to Seller at Closing, defined below.

8.2. **Title To Be Delivered; "As Is, Where Is" Purchase.** Seller agrees to convey to Purchaser marketable fee simple title to the Property subject only to the Permitted Exceptions.

8.3. **Risk of Loss.** Until Closing, Seller shall bear all risk of loss to the Property. Seller shall deliver the Property to Purchaser in substantially the same condition on the Date of Closing as it was on the Exercise Date, ordinary wear and tear and any damage caused by Purchaser excepted.

8.4. **Condemnation.** If, prior to the Date of Closing, all or a portion of the Property is the subject of an action in eminent domain or a proposed taking by a governmental authority, whether temporary or permanent, Purchaser, at its sole election, has the right to (i) terminate this Agreement at any time by giving written notice of such termination to Seller, and Purchaser shall be entitled to a refund of any of the Option Fees theretofore paid, or (ii) do one or more of the following: (a) proceed to Closing without any reduction in the Purchase Price, and Seller will assign all proceeds received by Seller in respect of the condemnation to Purchaser on the Date of Closing, and/or (b) contest such condemnation proceeding with Seller cooperating in accordance with Section 4.1(k).

8.5. **Closing.** The consummation of the transaction for the Purchaser's acquisition of the Property from the Seller (the "**Closing**") will take place sixty (60) days following the Exercise Date or on such earlier date as Seller and Purchaser may mutually agree (the "**Date of Closing**"). Both Parties will submit their respective Closing documents and funds to the Title Company as escrowee. Possession of the Property will be delivered to Purchaser on the Date of Closing and, subject to Seller's representations and warranties set forth herein, Closing shall constitute Purchaser's acceptance of the Property in its then existing "as is, where is" condition.

8.6. **Seller's Obligations at Closing.** At Closing, and subject to the terms, conditions, and provisions hereof and the performance by Purchaser of its obligations as set forth below, Seller must:

(a) Execute, acknowledge and deliver to Purchaser a warranty deed to the Property in recordable form conveying to Purchaser marketable fee simple title to the Property and all rights appurtenant thereto, subject only to:

(i) the Permitted Exceptions;

(ii) a right of first refusal in favor of Seller such that, in the event that Purchaser desires to sell the Property within five (5) years from the Date of Closing pursuant to a bona fide offer to purchase, Seller shall have a period of thirty (30) days during which to agree to match the terms of such offer; provided, however, such right of first refusal shall not apply to any sale, conveyance, lease, sublease, assignment or other transfer of the Property to any affiliate, subsidiary or other entity under common control or directly or indirectly controlled by Purchaser or any public, quasi-public or private utility company, including, without limitation, Public Service Company of Oklahoma or any affiliate, subsidiary or other entity under common control or directly or indirectly controlled by American Electric Power Company.

(b) Deliver to Purchaser an affidavit of Seller:

(i) identifying Seller as the owner of the Property;

(ii) stating that all work, labor, services and materials furnished to or in connection with the Property at the request of Seller have been fully paid for so that no mechanic's, materialmen's, or similar lien may be filed against the Property; and

(c) Provide for such other matters as to Seller's organization and authority to deliver the warranty deed as the Title Company reasonably requires in order to issue its extended coverage owner's policy in accordance with the terms and conditions of the Commitment.

(d) Satisfy any existing mortgage, deed of trust or other indebtedness secured by a lien on the Property, from the proceeds of Closing and additional cash if necessary.

(e) Deliver to Escrow Agent any other documents required by this Agreement or as may be reasonably requested by the Title Company to consummate the transaction contemplated by this Agreement or to permit the Title Company to issue its owner's policy in accordance with the terms and conditions of the Commitment.

8.7. **Purchaser's Obligations at Closing.** At Closing, and subject to the terms, conditions, and provisions hereof and the performance by Seller of its obligations as set forth above, Purchaser must:

(a) Deliver to Seller the balance of the Purchase Price then due and payable.

(b) Execute and deliver to Seller all other documents required by this Agreement or as may be reasonably requested by the Title Company to consummate the transaction contemplated by this Agreement or to permit the Title Company to issue its owner's policy in accordance with the terms and conditions of the Commitment.

8.8. **Closing Costs.** The following costs and expenses shall be paid as follows in connection with the Closing:

(a) Seller's Closing Costs. Seller will pay the following costs in connection with the Closing:

(i) Any deed or transfer taxes required or due upon delivery or recording of the warranty deed to Purchaser.

(ii) Seller's attorneys' fees.

(iii) Any indebtedness secured by a mortgage or deed of trust on the Property, past due taxes, federal or state tax liens or judgment liens against the Property.

(iv) The cost of recording the satisfaction of any existing mortgage or deed of trust and any other document necessary to make title marketable.

(b) Purchaser's Closing Costs. Purchaser will pay the following costs in connection with the Closing:

(i) The cost of the Commitment.

(ii) The cost of the Survey.

(iii) The premium for a standard form of owner's title policy with extended coverage.

(iv) Any filing fee to record the warranty deed.

(v) Purchaser's attorneys' fees.

(vi) Any closing fee charged by Title Company.

8.9. **Prorations.** The following prorations (including any expenses accrued but unpaid) will be made as of the Date of Closing by credits or debits to Purchaser against the Purchase Price:

(a) Real estate taxes and special assessments as provided below.

(b) Income and expenses relating to the Property, if any (Seller shall be deemed the Property owner on the Date of Closing for income and expenses proration purposes).

8.10 **IRS Form W-9.** Notwithstanding anything in this Agreement to the contrary, Purchaser shall have no obligation to make any payment to Seller otherwise required under this Agreement until Seller has returned to Purchaser a completed Internal Revenue Service Form W-9, such Form W-9 to either (i) have been provided by Purchaser to Seller prior to execution of this Agreement or (ii) be provided by Purchaser to Seller promptly upon execution of this Agreement.

9. **Taxes and Special Assessments.** Seller will pay the real estate taxes and special assessments relating to the Property which are assessed with respect to the calendar years prior to the year in which the Closing takes place (including any deferred taxes payable as a result of the Closing, if any) and its pro rata share of the real estate taxes assessed with respect to the year of Closing, based on the ratio that the number of days from January 1st of the year of Closing through the Date of Closing bears to three hundred sixty-five (365) days. Seller will pay all existing, deferred, levied and pending special assessments against the Property

due and payable as of the Date of Closing (including any special assessments certified to the current or future year's taxes). The balance of the real estate taxes assessed in respect of the year of Closing and thereafter will be paid by Purchaser.

10. Brokerage. The Seller represents and warrants to Purchaser that it has not engaged the services of any broker in connection with the sale and purchase contemplated by this Agreement. Seller agrees to indemnify and hold Purchaser harmless from any claim made by the above-referenced broker and any other broker or sales agent or similar party who claims to have dealt with Seller for a commission due or alleged to be due on this transaction. Purchaser represents and warrants to Seller that it has not engaged the services of any broker in connection with the sale and purchase contemplated by this Agreement. Purchaser agrees to indemnify and hold Seller harmless from any claim made by any broker or sales agent or similar party who claims to have dealt with Purchaser for a commission due or alleged to be due on this transaction.

11. Default.

11.1. If Seller fails to perform its obligations hereunder, including complying with Seller's representations and warranties contained herein, for any reason except Purchaser's default or the failure of Purchaser to satisfy any conditions to Seller's obligations, Purchaser may:

(a) enforce the specific performance of this Agreement, which action must be commenced within one (1) year of the date of Seller's failure or default; or

(b) cancel and terminate this Agreement and be relieved of its obligations hereunder; or

(c) exercise its rights in equity and at law.

In the event Purchaser cancels and terminates this Agreement due to a material breach of Seller's representations and warranties contained herein or Seller's failure to perform its obligations under Section 8 hereof, Purchaser shall be entitled to the return of any Option Fees paid to Seller in addition to its remedies at law and in equity. No delay or omission in the exercise of any right or remedy accruing to Purchaser upon any breach by Seller shall impair the right or remedy or be construed as a waiver of any previous or subsequent breach. The waiver by Purchaser of any condition or the breach of any other term, covenant, or condition shall not constitute a waiver of any other condition or of any subsequent breach of the same or any other term, covenant, or condition. All rights, powers, options, or remedies afforded to Purchaser under this Agreement or by law or equity are cumulative and not alternative, and the exercise of one right, power, option, or remedy shall not bar any other rights, powers, options or remedies allowed under this Agreement or by applicable law.

11.2. If Purchaser fails to perform its obligations hereunder for any reason except Seller's default or the failure of Seller to satisfy any conditions to Purchaser's obligations, Seller shall be entitled to retain the Option Fees as liquidated damages as its sole and exclusive remedy and then cancel and terminate this Agreement in the manner provided by applicable law. No delay or omission in the exercise of any right or remedy accruing to Seller upon any breach by Purchaser shall impair the right or remedy or be construed as a waiver of any previous or subsequent breach. The waiver by Seller of any condition or the breach of any other term, covenant or condition shall not constitute a waiver of any other condition or of any subsequent breach of the same or any other term, covenant or condition.

12. Miscellaneous. The following general provisions govern this Agreement:

12.1. **Governing Law.** This Agreement is made and executed under and in all respects is governed and construed under the laws of the State of Oklahoma.

12.2. **Notices.** Any notice required to be given to Seller or Purchaser pursuant to this Agreement must be in writing and is deemed duly given: (i) on the date of personal delivery; (ii) one day following dispatch by Federal Express or equivalent; or, (iii) three (3) days following mailing by certified or registered mail, postage prepaid, return receipt requested, to the respective addresses of the Parties set out below:

Seller: Brandon H. Kuehn 18661 EW 3 RD S Coffeyville, OK 74072	**Purchaser:** Invenergy Solar Project Development LLC c/o Invenergy LLC One S. Wacker Drive, Suite 1800 Chicago, Illinois 60606 Attn: General Counsel Fax:312-224-1444

12.3. **Amendments.** This Agreement may be amended only by a written instrument signed by Seller and Purchaser.

12.4. **Assignment.** Purchaser may assign its rights under this Agreement upon written notice to Seller, and the assignee shall assume all of Purchaser's obligations herein and Purchaser will be deemed released from any liability under this Agreement.

12.5. **Successors and Assigns.** This Agreement shall run with the land and shall inure to the benefit of and shall be binding upon the Parties, shall be binding upon their respective successors and permitted assigns and shall inure to the benefit of and be enforceable only by such successors and permitted assigns that have succeeded or which have received such assignment in the manner permitted by this Agreement.

12.6. **Relationship of the Parties.** Nothing in this Agreement shall be construed so as to make the Purchaser a partner, agent, joint–venturer, landlord or tenant of the Seller.

12.7. **Entire Agreement.** This Agreement sets forth the entire understanding of the Parties and may be amended, modified or terminated only by a document signed by the Parties.

12.8. **Counterparts.** For the convenience of the Parties, any number of counterparts of this Agreement may be executed and each such executed counterpart is deemed an original, but all the counterparts together constitute one and the same Agreement.

12.9. **Confidentiality.** The Seller agrees to keep confidential the existence, status, or terms and conditions of this Agreement, including, without limitation, the Purchase Price (collectively, the "**Confidential Information**"), and not to disclose or otherwise convey any portion of the Confidential Information to any person except to such Party's accountants and attorneys, or to such Seller's employees and representatives (collectively, the "**Representatives**") and local, state, and/or national officials who need to know such information for the purpose of assisting the Seller in connection with

this Agreement, and in those instances only to the extent justifiable by that need (it being understood and agreed that such persons shall be informed by the Seller of the confidential nature of all such information and shall direct all such persons to treat such information confidentially).

[signature page to follow]

IN WITNESS WHEREOF, the Parties hereto have executed this Agreement as of the day and year set forth above.

SELLER:

Brandon Harold Kuehn, aka Brandon H. Kuehn, herein joined pro forma by his wife, Amber Jolea Kuehn

Name: Brandon Harold Kuehn

Name: Amber Jolea Kuehn

PURCHASER:

INVENERGY SOLAR PROJECT DEVELOPMENT LLC
a Delaware limited liability company

By:
Name: Michael Baird
Title: Vice President

EXHIBIT A
TO
LAND OPTION PURCHASE AGREEMENT

Description of Property

The Northwest Five (5) acres of the North Half of the Northeast Quarter (N/2 NE/4) in Section Twenty-Eight (28), Township Twenty-Nine (29) North, Range Sixteen (16) East of the Indian Meridian, Nowata County, State of Oklahoma.

EXHIBIT A-1

Depiction of the Land Option Purchase Area

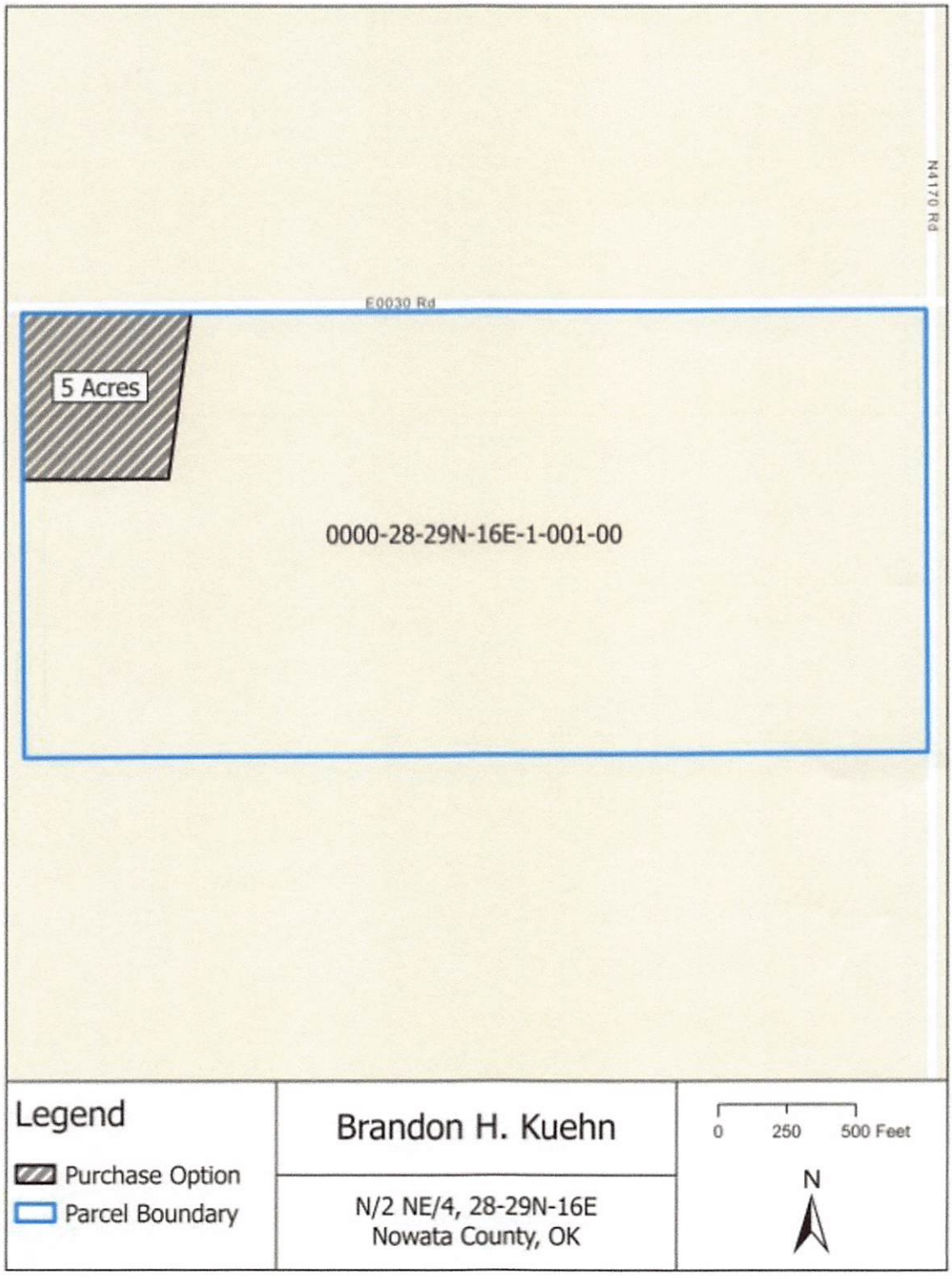


EXHIBIT B
TO
LAND OPTION PURCHASE AGREEMENT

[See Attached]

MEMORANDUM OF LAND OPTION PURCHASE AGREEMENT

This instrument memorializes the fact that INVENERGY SOLAR PROJECT DEVELOPMENT LLC, a Delaware limited liability company located at One South Wacker Drive, Suite 1800, Chicago, Illinois 60606 ("**Purchaser**"), and BRANDON HAROLD KUEHN, an individual, having an address at 18661 EW RDS Coffeyville, OK 74072 ("**Seller**"), have entered into that certain Land Option Purchase Agreement dated the ____ day of December, 2023 (the "**Agreement**") concerning the real property in the County of Nowata, State of Oklahoma described in Exhibit B-1 attached hereto (the "**Property**").

Under the terms of the Agreement, which is in full force and effect, Purchaser has the exclusive option to purchase the Property from Seller for the price specified therein. The Agreement expires no later than eighty-four (84) months from the Agreement date specified above, including rights to extend, although the closing of the purchase of the Property may occur within sixty (60) days after such date. If a deed from Seller to Purchaser has not been recorded by the date that is sixty (60) days following the expiration of the eighty-fourth (84th) month following the Effective Date, then this Memorandum of Land Option Purchase Agreement shall be null and void and of no further force and effect. This Memorandum of Land Option Purchase Agreement may also be terminated of record by the recording of a quitclaim deed or other instrument evidencing such termination signed by Seller and Purchaser and recorded in the Nowata County Registry.

[signatures on following page]

SELLER:

Brandon Harold Kuehn, aka Brandon H. Kuehn, herein joined pro forma by his wife, Amber Jolea Kuehn

By:_____
Name: Brandon Harold Kuehn

_____
Name: Amber Jolea Kuehn

PURCHASER:

INVENERGY SOLAR PROJECT DEVELOPMENT LLC
a Delaware limited liability company

By:_____
Name:_____
Title:_____

ACKNOWLEDGMENT OF SELLER

STATE OF OKLAHOMA)
) SS.
COUNTY OF _____)

Personally came before me this ____ day of December, 2023, Brandon Harold Kuehn and Amber Jolea Kuehn, each of whom executed the foregoing instrument **individually**, and acknowledged the same.

(S E A L)

Name: _____
Notary Public, State of _____
My Commission Expires: _____

ACKNOWLEDGMENT OF PURCHASER

STATE OF _____)
) SS.
COUNTY OF _____)

Personally came before me this ____ day of _____, 2023, _____ who executed the foregoing instrument as Vice President of Invenergy Solar Project Development LLC and acknowledged the same.

(S E A L)

Name: _____
Notary Public, State of _____
My Commission Expires: _____

EXHIBIT B-1
TO
MEMORANDUM OF LAND OPTION PURCHASE AGREEMENT

Description of Property

The Property shall consist of the following parcels:

The Northwest Five (5) acres of the North Half of the Northeast Quarter (N/2 NE/4) in Section Twenty-Eight (28), Township Twenty-Nine (29) North, Range Sixteen (16) East of the Indian Meridian, Nowata County, State of Oklahoma.

EXHIBIT C
TO
LAND OPTION PURCHASE AGREEMENT

Notice of Exercise

Date:[_____]

_____
_____
_____
_____

Re: Notice of Exercise of Option to Purchase the Property described in the Land Option Purchase Agreement, dated [_____], 20[___] (the "**Agreement**")

Dear [_____]:

[_____] hereby exercises its option to purchase the property described in the Agreement in accordance with the terms of the Agreement. Please execute and return to the undersigned the acknowledgment to this letter.

Regards,

[_____]

By:_____

Name:_____

Title:_____

Acknowledged this ____ day of _____.

_____

By:_____

Name:_____

Title:_____

Form #051818

EXHIBIT D
TO
LAND OPTION PURCHASE AGREEMENT

Encumbrances Disclosed by Seller